

M2.2 Rules of Evidence – Admissions RASE

Learner Instructions

You are prosecuting a contested hearing where the accused, a teenage girl, is charged with :

1. Intentionally Causing Injury
2. Recklessly Causing Injury
3. Unlawful Assault.

It is alleged that she approached a classmate, V, after school in a lane way and slashed her arm twice with a kitchen knife. V received two lacerations to her forearm approximately 5 cm in length. V made a statement to police detailing the assault. V identifies the accused and states that the accused yelled just prior to slashing her arm:

“You better stop talking about me. I haven’t been using drugs and ditching school. If you don’t stop next time I will cut you deeper!”

One week later the accused was speaking with a friend, F. F mentions the assault on V and the accused states:

“Well if you tell lies about people you get what you deserve”

F asks the accused:

“What has she been saying?”

The accused replies:

“Spreading lies about people using drugs and ditching school.”

During the running of the contested hearing, you call F to give evidence of the conversation with the accused. Defence object stating the entire conversation is hearsay. The Magistrate asks you how they can hear the evidence from F.

Prepare a submission in response (IRAC format preferred).

NB: When you are in court if the defence object to hearsay evidence being adduced, you must consider whether the evidence is hearsay first. If you determine that it is then you must consider if there is an exception that would allow the evidence to be admitted. For the purpose of this submission you have conceded that the evidence is hearsay.